3rd July 2003

THE GOVERNOR AND COMPANY OF
THE BANK OF ENGLAND

LTA GROUND LIMITED

and

THE ALL ENGLAND LAWN TENNIS GROUND PLC

AGREEMENT FOR LEASE
of Part of the Bank of England
Sports Ground Roehampton

FRESHFIELDS BRUCKHAUS DERINGER

CONTENTS

CLAUSE		PAGE
1.	DEFINITIONS AND INTERPRETATION	1
2.	INTERPRETATION	6
	Headings	6
	References to clauses, paragraphs and schedules	6
	Gender and number	6
	Joint and several obligations	6
	References to statutes	6
3.	CONDITIONAL AGREEMENT	6
4.	PLANNING PERMISSION	6
	Expert Determination	9
	Co-operation Pending the Grant of Planning Permission	10
5.	TERMINATION	10
6.	PAYMENT	11
7.	GRANT AND COMPLETION OF THE LEASE	11
8.	VACANT POSSESSION AND COMPLETION DATE AND ACCESS	12
9.	WORKS	12
10.	TERMINATION	18
11.	GUARANTEE	19
12.	TITLE AND CONDITION	20
13.	RESTRICTIONS	21
14.	PROCEDURE FOR DISPUTES	22
	Disputes generally	22
	Appointment of Arbitrator	22
	Appointment of expert	22
15.	MISREPRESENTATIONS	23
16.	ASSIGNMENT OF BENEFIT PROHIBITED	23
17.	GRANT OF LEASE TO GROUP COMPANIES	23
18.	POSSESSION	24
19.	NOTICES	24
20.	COSTS	24
21.	MERGER EXCLUDED	24
22.	VALUE ADDED TAX AND INTEREST	24

Serial / Registration Number	*Description of Hardware*	*Location*
YSG5z642	IBM Deskstor	STV Bunker
YMF60152	IBM Deskstor	STV Bunker
ysg5r246	IBM Deskstor	STV Bunker
yxf52337	IBM Deskstor	STV Bunker
AA10306500ar16402070	Monitor 19" (Belinea)	STV Bunker
YSFN2902	IBM Deskstor	STV Bunker
ysflx523	IBM Deskstor	STV Bunker
ysfm8257	IBM Deskstor	STV Bunker
ysfn8938	IBM Deskstor	STV Bunker
AA10306500ar16402067	Monitor 19" (Belinea)	STV Bunker
ysfna192	IBM Deskstor	STV Bunker
ysfaj424	IBM Deskstor	STV Bunker
ysfn8634	IBM Deskstor	STV Bunker
jsfn7283	IBM Deskstor	STV Bunker
N/A	Monitor 15"(Mitsubishi)	STV Bunker

23. NO PARTNERSHIP 25
24. THIRD PARTY RIGHTS 25
25. SEVERABILITY 25
26. AGREEMENT PERSONAL TO LANDLORD 25
27. CONFIDENTIALITY 25
28. ENTIRE AGREEMENT 26
SCHEDULE 1 THE SITE 27
SCHEDULE 2 THE LEASE 28
SCHEDULE 3 28
I THE PLANNING APPLICATION 28
II PLANS AND SPECIFICATIONS 28
III FOOTPATH PLAN 28
IV LANDLORD'S KEY WORKS SPECIFICATION 29
SCHEDULE 4 ADVERSE CONDITIONS 31
SCHEDULE 5 THE SUBJECTIONS 32
SCHEDULE 6 THE PRE-EMPTION AGREEMENT 33
SCHEDULE 7 SIDE LETTER 33

AN AGREEMENT UNDER SEAL made on 3rd July 2003

BETWEEN:

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND of Threadneedle Street London EC2R 8AH (the ***Landlord***)

LTA GROUND LIMITED the registered office of which is at The Queen's Club Palliser Road West Kensington London W14 9EG (Company Registration No. 2578901) (the ***Tenant***) and

THE ALL ENGLAND LAWN TENNIS GROUND PLC the registered office of which is at Hill House 1 Little New Street London EC4A 3TR (Company Registration No. 168491) (the ***Guarantor***)

NOW THIS DEED WITNESSETH as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement unless the context otherwise requires the following expressions shall have the following meanings:

Act means the Town and Country Planning Act 1990 or any statutory amendment, re-enactment or replacement thereof;

Adverse Condition means any of the conditions listed in Schedule 4;

Appeal means all or any of the following as the case may be:

(a) an appeal to the Secretary of State under Section 78(1) of the Act against a refusal of a Planning Application or the grant of a Planning Permission which is not a Satisfactory Planning Permission; or

(b) an appeal to the Secretary of State under Section 78(2) of the Act against the non-determination of a Planning Application or;

(c) a Call-In;

Approved Plans means the detailed drawings and elevations relating to the Works which have been approved by the Landlord in accordance with the provisions of clause 9.1 together with any further such items and any omissions therefrom or alterations or additions thereto approved by the Landlord;

Call-In means the referral of a Planning Application to the Secretary of State under Section 77 of the Act;

CDM Regulations means the Construction (Design and Management) Regulations 1994;

Completion Date means the date specified in clause 8.1 subject to the Unconditional Date having occurred;

Completion Documents means the Lease and the Pre-Emption Agreement;

Conditions means any of the conditions subject to which a Planning Permission is granted;

Counsel means leading counsel nominated by the Tenant of at least ten years call experienced in advising on planning appeals;

Deleterious Materials means the following:

(a) high alumina cement in structural elements;

(b) wood wool slab in permanent formwork to concrete or in structural elements;

(c) calcium chloride in admixtures for use in reinforced concrete;

(d) asbestos or asbestos containing products as defined in The Asbestos Regulations 1969 or in any statutory modification or re-enactment thereof current at the date of specification;

(e) aggregates for use in reinforced concrete which do not comply with the requirements of British Standard 882 (1992) and aggregates for use in concrete which do not comply with the relevant provisions of British Standard 8110 (1985);

(f) lead or any products containing lead which may be ingested inhaled or absorbed except for external flashings or where copy alloy fittings containing lead are specifically required in drinking water pipework or by any relevant statutory requirement current at the date of use;

(g) urea formaldehyde foam or materials which may release formaldehyde in quantities which may be hazardous with reference to the limits set by the Health and Safety Executive at the date of use;

(h) materials which are generally composed of or contain mineral fibres either manmade or naturally occurring which have a diameter of 3 microns or less and a length of 200 microns or less or which contain any fibres not sealed or otherwise stabilised to ensure that fibre mitigation is prevented; and

(i) other substances generally known at the time of use to be deleterious to health and safety or to the durability of the building in the particular circumstances in which they are used.

Development means a development as defined in the Plans and Specifications;

Drainage Works means the construction of the surface water drain referred to in Schedule 3 of the Lease or in such alternative position as the Landlord and the Tenant may agree in writing prior to the grant of the Lease;

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pre-emption agreement pla

Records Office

Pavilion

Sports Hall

BANK LANE

DOWDESWELL CLOSE

Priory Lane

Priory Lodge

Icehouse

Information	Tender	Briefing	Construction	Work Package	Information	Tender	Briefing	Construction	Date	Ref.	Revision	Date	Ref.	Revision

Project	The Lawn Tennis Association				
Subject	Site Plan				
Scale	1:1250	Date	May 2003	Project Ref.	LTA

Landlord includes the Landlord's successors in title to the Premises and any other person who is at any time entitled to the reversion immediately expectant on the term agreed to be granted by this Agreement;

Landlord's Notice means a written notice served on the Tenant by the Landlord (within 20 Working Days of the receipt by the Landlord of a copy of a Planning Permission) stating that the Planning Permission is not a Satisfactory Planning Permission in its reasonable opinion because it is subject to one or more Adverse Conditions which are to be specified in such written notice

Landlord's Key Works means a synthetic all weather pitch with lighting and associated engineering works and 4 hard courts with lighting and services to be constructed by the Landlord on its Retained Land;

Landlord's Key Works Specification means the plans and drawings describing the Landlord's Key Works which are annexed to this Agreement at Schedule 3 Part IV;

Lease means the lease of the Premises for a term of 125 years commencing on the Completion Date reserving a rent of a peppercorn if demanded in the form of the draft lease annexed to this Agreement at Schedule 2;

Local Planning Authority means the local planning authority for the area in which the Premises are situated.

Plans and Specifications means the detailed plans drawings and elevations describing the Development which are listed in Schedule 3 Part II to this Agreement copies of which are annexed and the term shall include any addition to or substitution or change or alteration to the same approved by the Landlord in accordance with this Agreement;

Payment means the sum of £100,000 per annum exclusive of VAT payable by the Tenant to the Landlord by way of licence fee during the Payment Period payable in accordance with the provisions of clause 6

Payment Period means the period from 1 August 2004 (if Satisfactory Planning Permission has not then been granted) until whichever is the earlier of:

(a) The completion of the Lease; or

(b) The Termination Date

Planning Agreement means an agreement in respect of and affecting the Premises (whether or not also affecting other premises) pursuant to Section 106 of the Act and/or Section 33 of the Local Government (Miscellaneous Provisions) Act 1982 and/or Section 38 and/or 278 of the Highways Act 1980 and/or Section 104 of the Water Industry Act 1991 or any provision to similar intent and/or any agreement with any competent authority or body relating to any services;

Planning Application means the planning application for the Development and for the Landlord's Key Works in the form annexed at Schedule 3 Part I or as amended, varied or made in accordance with clause 4.1.4;

Planning Permission means any planning permission granted in respect of the Planning Application;

Planning Permission Date means:

(a) the date written, printed or stamped on the Planning Permission issued by the Local Planning Authority; or

(b) the date written, printed or stamped on the letter or the other document issued by the Secretary of State or the Inspector following an Appeal or a Call In

Pre-Emption Agreement means the agreement relating to part of the Retained Land in the form of the draft pre-emption agreement annexed at Schedule 6 and initialled by the parties;

Premises means the premises to be constructed as part of the Development which are to be demised by the Lease and are described therein;

Premium means the sum of £9,000,000 exclusive of VAT payable by the Tenant to the Landlord;

Prescribed rate means a rate of interest of four per centum per annum over the repo rate from time to time of the Bank of England;

Proceedings means all or any of the following as the case may be:

(a) an application for judicial review under Rule 54 of the Civil Procedure Rules; and

(b) an application pursuant to Section 288 of the Act in respect of a Planning Permission, a Satisfactory Planning Permission or a Refusal including in each case any appeals to a higher court following a judgment of a lower court; and

(c) any reconsideration by the Local Planning Authority of a Planning Application or the Secretary of State of an Appeal (as the case may be) following a previous Satisfactory Planning Permission or Refusal being quashed pursuant to an application within the meaning of clauses (a) and (b) and the matter being remitted to the Local Planning Authority or the Secretary of State (as the case may be);

Refusal means the refusal of a Planning Application by the Local Planning Authority or the refusal of an Appeal by the Secretary of State or the grant of a Planning Permission by the Local Planning Authority or the Secretary of State which is not a Satisfactory Planning Permission;

Retained Land means the premises as so defined by the Lease;

Satisfactory Planning Permission means a Planning Permission where:

(a) no Tenant's Notice has been served and the time within which such a notice may be served has expired; and

(b) either:

(i) no Landlord's Notice has been served and the period within which a valid Landlord's notice may be served has expired (in which case the date of the Satisfactory Planning Permission shall be the Planning Permission Date); or

(ii) a Landlord's Notice has been served specifying as an Adverse Condition one falling within paragraph 1.2 of Schedule 4 and the Expert in accordance with clause 4.4.1 has determined that such Condition is not an Adverse Condition (in which case the date of the Satisfactory Planning Permission shall be deemed to be the date of the Expert's determination).

Secretary of State means the First Secretary of State;

Site means the property described in Schedule 1 and each and every part thereof;

Tenant's Notice means a written notice served on the Landlord by the Tenant (acting in good faith) within 20 Working Days of the Planning Permission Date stating that the Tenant (acting in good faith) believes that the Planning Permission is not a Satisfactory Planning Permission;

Termination Date means 31 December 2005;

Unconditional Date means the first date on which all the following apply:

(a) there is a Satisfactory Planning Permission; and

(b) at least 14 weeks have passed from the Planning Permission Date in respect of the Satisfactory Planning Permission; and

(c) either no Proceedings have been issued or where Proceedings have been issued they have been exhausted leaving in place a Satisfactory Planning Permission.

Works means the works of design and construction of new buildings for the Permitted Use (as defined by the Lease) and includes any part or parts thereof as the same are described in and in accordance with the Plans and Specifications specified in Part II of Schedule 3 and the provisions of this Agreement;

Working Day means a day (other than a Saturday) on which clearing banks in the City of London are actually open for banking business during banking hours.

2. INTERPRETATION

Headings

2.1 The clause, subclause, paragraph, subparagraph and schedule headings do not form part of this Agreement and shall not be taken into account in its construction or interpretation.

References to clauses, paragraphs and schedules

2.2 References in this Agreement to a clause, subclause, paragraph, subparagraph or schedule without further designation are to be construed as references to the clause, subclause, paragraph, subparagraph or schedule of this Agreement so numbered.

Gender and number

2.3 In this Agreement words importing one gender are to be construed as importing any other gender and words importing the singular are to be construed as importing the plural and vice versa.

Joint and several obligations

2.4 Where any party comprises more than one person the obligations and liabilities of that party under this Agreement are to be joint and several obligations and liabilities of those persons.

References to statutes

2.5 Unless expressly stated to the contrary any reference to a specific statute includes any statutory extension or modification, amendment or re-enactment of that statute and any regulations or orders made under it, and any general reference to a statute includes any regulations or orders made under that statute.

2.6 "Including" "include" and "includes" shall be deemed to be followed by the words "without limitation".

3. CONDITIONAL AGREEMENT

Save for clauses 4, 5 and 6 this Agreement is conditional upon the Unconditional Date occurring prior to the Termination Date.

4. PLANNING PERMISSION

4.1 The Tenant's obligations

The Tenant must:

4.1.1 promptly submit the Planning Application to the Local Planning Authority;

4.1.2 pay, and keep the Landlord fully and effectively indemnified against all fees costs liabilities and expenses arising directly or indirectly from and incidental to the

submission and pursuit of any Planning Application (save for any element directly arising from the application for the Landlord's Key Works only and also for the avoidance of doubt in-house costs of the Landlord).

4.1.3 use all reasonable endeavours to obtain a Satisfactory Planning Permission before the Termination Date which shall include if it appears requisite or desirable in order to obtain the Satisfactory Planning Permission entering into a Planning Agreement;

4.1.4 not make any amendment or variation to the Planning Application or any subsequent planning application without the approval of the Landlord which is not to be unreasonably withheld or delayed; and

4.1.5 serve a Tenant's Notice on the Landlord within 20 Working Days of the grant of a Planning Permission or serve written notice on the Landlord that no Tenant's Notice will be served by the Tenant in relation to that Planning Permission and in deciding whether or not to serve a Tenant's Notice and whether or not to enter into a Planning Agreement in order to procure Satisfactory Planning Permission the Tenant shall act in good faith.

4.2 Appeals and further applications

4.2.1 If a Planning Application is:

(a) refused by the Local Planning Authority; or

(b) deemed to have been refused and the Tenant has not extended the period during which the Local Planning Authority may consider a Planning Application; or

(c) the subject of a Call-In

the Tenant shall (unless advised by Counsel that there is a less than 70% chance of success) in the case of a refusal or deemed refusal lodge an Appeal with the Secretary of State and use all reasonable endeavours to prosecute the Appeal or, in the case of a Call-In, pursue the Planning Application unless Counsel subsequently advises that there is then a less than 70% chance of success by the Termination Date.

4.2.2 If the Local Planning Authority issue a Planning Permission which is not a Satisfactory Planning Permission the Tenant shall (unless advised by Counsel that there is a less than 70% chance of success) either:

(a) lodge an Appeal with the Secretary of State; or

(b) by agreement with the Landlord (not to be unreasonably withheld or delayed) submit an application for planning permission pursuant to Section 73 of the Act for the carrying out of the Development without complying with a condition or conditions subject to which the previous Planning Permission was granted (and in the event that such an application is made it shall for the purposes of this Agreement be treated as a Planning Application)

and use all reasonable endeavours to prosecute the Appeal or the Planning Application (as the case may be) unless Counsel subsequently advises that there is then a less than 70% chance of success by the Termination Date.

4.2.3 The Tenant must provide the Landlord with a copy of any instructions to Counsel which the Landlord is to approve (such approval not to be unreasonably withheld or delayed) and must provide the Landlord with a copy of any opinion given by Counsel within 14 days of receipt of such opinion.

4.2.4 The Tenant must keep the Landlord informed of the progress of a Planning Application or Appeal.

4.2.5 The Tenant must within 14 days of receipt of a Refusal send a copy of the Refusal to the Landlord.

4.2.6 The Tenant must within 14 days of receipt of a Planning Permission send a copy of the Planning Permission to the Landlord.

4.2.7 Nothing in this agreement shall prevent the Tenant lodging or pursuing an Appeal or submitting an application pursuant to Section 73 of the Act as mentioned in clause 4.2.2(b) (at its own cost) where Counsel has advised that there is a less than 70% chance of success should the Tenant wish to do so.

4.3 Landlord's Obligations

The Landlord must:

4.3.1 co-operate with the Tenant and at the Tenant's cost (save in respect of the Landlord's Key Works) use its reasonable endeavours to assist the Tenant to obtain the Satisfactory Planning Permission including providing all assistance reasonably required in relation to any part of the Planning Application which relates to the Landlord's Key Works, but this does not extend to public support of the Tenant's Planning Application;

4.3.2 not act independently of the Tenant and in particular not submit any planning application in respect of any part of the Premises or in respect of the redevelopment of the whole or substantially the whole of the Retained Land which conflicts with its obligations under clause 4.3.1 without first obtaining the Tenant's consent which shall not be unreasonably withheld or delayed (and the Tenant acknowledges that no such prior consent is required in respect of any application for the alteration or extension or rebuilding or change of use of any existing building on the Retained Land, including the records building and pavilion, provided that the Landlord keeps the Tenant fully and promptly informed in writing of the making and progress of any such applications); and

4.3.3 enter into a Planning Agreement if it appears requisite or desirable in order to obtain the Satisfactory Planning Permission provided that

(a) the Landlord is only a party to such Planning Agreement:

(i) in order to bind the necessary land interest; or

(ii) in respect of matters arising directly from or related directly to the Landlord's Key Works;

(b) the Tenant indemnifies the Landlord against any fee cost expense or liability incurred by the Landlord entering into the Planning Agreement and/or thereunder (except in respect of matters expressly arising from or directly related to the use, occupation or execution of the Landlord's Key Works); and

(c) the Planning Agreement is in a form acceptable to the Landlord (acting reasonably); and

(d) the Planning Agreement does not adversely affect the Landlord's reversionary interest in the Premises if the Landlord reasonably believes that the indemnity offered by the Tenant is not adequate or appropriate compensation for the said adverse impact; and

(e) the Planning Agreement does not contain an Adverse Condition; and

(f) the Planning Agreement will so far as it affects the use and occupation or development of the Premises or the Retained Land become effective only upon implementation of the Satisfactory Planning Permission.

Expert Determination

4.4.1 Notice to invoke expert determination

Within 14 days of receipt of a Landlord's Notice which specifies a Condition falling within paragraph 1.2 of Schedule 4 the Tenant may serve on the Landlord written notice (a ***Notice for Determination***) requiring that an independent chartered surveyor (the ***Expert***) acting as an expert and not as an arbitrator shall determine whether or not such Condition specified in the Landlord's Notice is an Adverse Condition.

4.4.2 Appointment of the Expert

(a) The Expert shall be such one of the individuals specified in clause 4.4.2(b) as the Tenant shall specify in the Notice for Determination

(b) The Tenant shall specify one of the following:

(i) Stephen Richardson of Atis Weatheralls

(ii) Oliver Close of Cushman Wakefield Healey & Baker

(iii) John Meredith of GVA Grimley

(c) If the person named in the Notice for Determination is unable or refuses to act, the Tenant shall refer the matter to either of the other relevant persons in turn. If both the other persons are unable or refuse to act then the Expert is to be appointed either by agreement between the parties or in default of agreement

within one month after the date of service of the relevant Notice for Determination, on the application of either party by the President for the time being of the Royal Institution of Chartered Surveyors or his duly authorised deputy or any person authorised by him to make appointments.

4.4.3 **Representations**

The Expert must invite the parties to submit to him any written representations concerning the Condition in question that they may respectively wish to make, within the time limits that he directs, and he must have such regard, if any, to the representations that he reasonably considers appropriate.

4.4.4 **Determination**

The Expert must determine whether the Condition in question is an Adverse Condition.

4.4.5 **Costs**

The fees and expenses of the Expert shall be paid in accordance with his award.

4.4.6 **Notice of Determination**

The Expert must give to each of the parties written notice stating the result of his determination pursuant to clause 4.4.4.

Co-operation Pending the Grant of Planning Permission

4.5.1 The Landlord and the Tenant shall take all reasonable steps to establish as early as possible (and prior to the grant of any Planning Permission) any condition upon which such Planning Permission is likely to, or would be granted, or which would be contained in any planning agreement which would be necessary or desirable to secure such Planning Permission

4.5.2 No Condition shall be an Adverse Condition if

(a) Prior to the grant of Planning Permission the Tenant has served written notice on the Landlord of the likelihood of such a Condition (or a Condition in substantially the same terms) being imposed and

(b) the Landlord has not within 10 Working Days of service of such notice served a written counter notice on the Tenant stating that the Landlord acting in good faith would, in its reasonable opinion, consider that such a Condition, if imposed, would be an Adverse Condition and in serving any such counter notice the Landlord shall also act reasonably and in good faith

5. TERMINATION

5.1 Termination of the Agreement

Unless the Unconditional Date has occurred this Agreement shall (except for clauses

4.1.2 and 5.2) automatically determine and cease to have effect on the Termination Date but this shall be without prejudice to any pre-existing right of action of any party in respect of any breach by any other party of his obligations under this Agreement and neither party is to be under any further liability to the other under it save as excepted.

5.2 Action Following Termination

If this Agreement determines in accordance with clause 5.1 the Tenant must immediately:

5.2.1 cancel any land charge registered at H M Land Charges Registry or as the case may be any notice or other entry registered against the Landlord's title at H M Land Registry in respect of this Agreement; and

5.2.2 in the event that by reason of its liquidation or otherwise the Tenant is unable to effect the cancellation referred to in clause 5.2.1 the Tenant hereby appoints the Landlord as its attorney to effect such cancellation.

6. PAYMENT

6.1 The Payment plus any Value Added Tax payable thereon (if applicable) shall become due from the Tenant to the Landlord on 1 August 2004 and shall be paid throughout the Payment Period by equal quarterly payments in advance on the usual quarter days the first of such payments for the period from and including 1 August 2004 until the next following quarter day to be made on the 1 August 2004.

6.2 If the Payment shall not be made on the due date the Tenant shall in addition thereto pay interest on the overdue amounts at the Prescribed rate from the due date until the date of actual payment (and as well after as before judgment).

6.3 Any part of the Payment paid in advance in respect of any period which falls wholly or partly after the Lease has been completed shall be refunded to the Tenant on completion (apportionments to be made on a daily basis).

7. GRANT AND COMPLETION OF THE LEASE

7.1 Grant and acceptance

If the Unconditional Date occurs prior to the Termination Date and the Tenant complies with its obligations contained in Clause 9 (so far as these fall to be complied with before the Unconditional Date) then subject to clauses 11.4.3 and 11.5 and 17 the Landlord must grant the Completion Documents and the Tenant and Guarantor must accept and execute counterparts of these documents.

7.2 Preparation of documents

The Completion Documents and counterparts of them are to be prepared by the Landlord's solicitors and engrossments of the counterparts of the Completion Documents must be delivered to the offices of the Tenant's solicitors at least 5 days

before the Completion Date.

7.3 **Completion**

7.3.1 The Completion Documents must be completed at the offices of the Landlord's solicitors or at any other place they reasonably require on the Completion Date when the Premium plus any Value Added Tax payable thereon shall be paid to the Landlord and any apportionments required under this Agreement made.

7.3.2 The money due on Completion shall be paid by telegraphic or other direct credit transfer (which the Landlord's solicitors must receive as cleared funds by 2.00 pm on the day of completion) for the credit of the Landlord's solicitors bank account.

8. VACANT POSSESSION AND COMPLETION DATE AND ACCESS

8.1 **Vacant Possession and Completion**

The Lease shall be completed and the Landlord shall give vacant possession of the whole of the Site on the date which is ten Working Days after the Unconditional Date.

8.2 **Access prior to Completion**

The Landlord will permit the Tenant reasonable access to the Premises prior to the Unconditional Date upon reasonable prior notice and on prior appointment with the Landlord in order that the Tenant may carry out such inspections, tests and other investigations as the Tenant may reasonably require and the Landlord acting reasonably may permit, subject to the Tenant making good as soon as reasonably practicable any damage to the Premises thereby caused to the entire satisfaction of the Landlord and subject to the Tenant keeping the Landlord fully and effectively indemnified against any loss costs claims demands liability damage actions expenses or proceedings whatsoever arising as a result of such access to the Premises by the Tenant and/or its agents licensees or employees or by reason of the act or default of the Tenant its agents licensees or employees.

9. WORKS

9.1 **Preparation and Approval of Detailed Plans**

The Tenant shall prior to commencing the Works prepare and submit to the Landlord for approval drawings and elevations showing the Works in sufficient detail for the Landlord to be reasonably satisfied that the Works as constructed will not be inconsistent with the Plans and Specifications and provided that such plans are consistent with the Plans and Specifications and that there has been no change in the proposed external visual appearance of the Development when viewed from the Retained Land other than changes which would normally be expected as the consequence of the translation of schematic drawings into the Development such consent will not be unreasonably withheld or delayed.

9.2 **Variations to Approved Plans**

9.2.1 No alteration addition variation modification or omission (including any change in materials) which is inconsistent with the Plans and Specifications and affects the external visual appearance of the Development as shown in the Plans and Specifications (all or any of the same being hereinafter in this Clause 9.2 referred to as a ***Variation***) shall be made without the prior written approval of the Landlord.

9.2.2 If the Tenant wishes to make any Variation it shall first give notice in writing containing full details to the Landlord and within 14 days of receipt the Landlord shall give a counter-notice to the Tenant stating:

(i) whether the Landlord reasonably considers the variation to be minor in nature; and either

(ii) in the case of any minor Variation whether or not the Landlord approves it such approval not to be unreasonably withheld or delayed; or

(iii) in the case of any other Variation whether or not the Landlord approves it or that (having regard to the number and/or complexity of the Variations it is not yet able to give a response and stating such reasonable period as it requires to give a response and if the Landlord shall fail to give a response within the period so stated it shall be deemed to have approved the Variation and (without prejudice to any period of time stated by the Landlord for giving its response) the Landlord shall not unreasonably withhold its approval to any Variation under this sub-paragraph (iii).

9.2.3 The Tenant shall ensure that following any approved Variation the Plans and Specifications and Approved Plans are updated to reflect the Variation and that 6 sets of any revised or additional drawings and elevations are supplied to the Landlord within 7 days of the Variation being approved.

9.3 **The Development**

9.3.1 From and after the commencement of the Works the Tenant shall proceed diligently to procure the execution of the same in accordance with the Approved Plans in a good and workmanlike manner with good quality materials with all proper despatch and in compliance with the requirements of the Satisfactory Planning Permission and the requirements of any competent authority or imposed by statute.

9.3.2 Prior to commencement of the Works, the Tenant shall erect in positions and to specifications reasonably required by the Landlord hoardings around the areas in which the Works are taking place and such other hoardings and protective works as shall safeguard the Site and all persons using the same such hoardings and works to be erected at such times and for such periods approved by or required by the Landlord acting reasonably and the Tenant will keep such hoardings in good repair to the reasonable satisfaction of the Landlord and shall remedy defects in the hoarding notified to it by the Landlord forthwith on receipt of such notice.

9.3.3 The Tenant shall not use or permit to be used in the Development any

Deleterious Materials.

9.3.4 In carrying out and completing the Works the Tenant covenants and it is agreed and declared as follows:

(a) to comply with the Approved Plans and this Agreement in all respects;

(b) to comply with the requirements of all statutes court orders building regulations and bye-laws relevant to the Works and all rules regulations permissions and conditions under such statutes orders regulations or bye-laws and in accordance with all relevant British Standards and regulations of the Institute of Electrical Engineers and the advice and requirements of the appropriate fire prevention officer of the relevant fire brigade for the time being and any judicial directive or recommendation;

(c) to use all reasonable endeavours to keep to a minimum any disruption to the Retained Land arising from the Works;

(d) to give or procure to be given prior written notice to the Landlord (such notice to be so long as reasonably practicable) of the time date and place of regular progress meetings (which shall take place not less than once a month) with the Tenant relating to the overall progress of the Works and allow representatives of the Landlord and its advisers to attend all such progress meetings and deliver copies of the minutes of all such progress meetings to the Landlord as soon as reasonably practicable following such meetings and the Landlord agrees to use all reasonable endeavours to procure that its duly authorised representatives attend such meetings;

(e) to procure that upon receipt of prior written notice the Landlord shall be permitted to meet with a duly authorised representative of the Tenant for the purpose of discussing the progress of the Works or any part thereof or any other matters the subject of this Agreement;

(f) not to use or allow to be used the Site or hoardings scaffolding or erections for the time being thereon or anything connected therewith for the display of advertisements bills placards boards posters or notices of any description except advertisements and notices of such sizes and designs and in such positions as may be approved in writing by the Landlord (which approval shall not be unreasonably withheld or delayed in respect of advertisements or notices relating to the execution of the Works or the letting of the Premises and complying with all statutory provisions relating thereto) and the Tenant shall forthwith upon notice by the Landlord remove any such advertisements bills placards boards posters or notices which may have been put on the Site by the Tenant or any other person without such approval;

(g) to comply with such reasonable safety measures as the Landlord's representatives may put forward at progress meetings from time to time for the safety of the Landlord's employees agents and licensees on the Site;

(h) not at any time to cause or permit any public or private nuisance or do or permit anything which shall cause as little inconvenience or disturbance as reasonably possible to the Landlord or to the occupiers of any adjoining building or which shall constitute a breach or violation of any of the provisions of any Act of Parliament or any other statute bye-law or regulation applicable to the Landlord and to supply the Landlord with all information which it requires to enable it to comply with such Acts of Parliament statute byelaw or regulation (including without prejudice to the generality of the foregoing safety care provisions);

(i) to make all necessary arrangements with the appropriate supply authorities for the provision of water gas electricity and other services required for the carrying out of the Works and pay all charges and costs in respect thereof;

(j) not to sell or dispose of or remove any earth clay gravel sand or spoil or any other materials from the Site except so far as the same may be necessary for the execution of the Works;

(k) to make security arrangements in respect of the Works which shall be reasonably satisfactory to the Landlord;

(l) to insure the Works in accordance with the provisions contained in the Lease (except temporary buildings, plant, tools and equipment owned or hired by any contractor or sub-contractor) and upon request by the Landlord to provide the Landlord with evidence of the cover and that the premium has been paid and in the event of loss or damage to lay out all insurance monies received with all speed in rebuilding repairing or otherwise reinstating the Works and make up any deficiency from the Tenant's own resources;

9.3.5 The Landlord and the Tenant shall agree such Method Statements as are reasonably required (both parties acting reasonably) to facilitate the smooth carrying out of the Works and the Landlord's Key Works, and security and safety, to minimise disruption and to cover phasing and shall comply with such Method Statements.

9.3.6 Approvals under this clause 9 on behalf of the Landlord may be relied upon by the Tenant if given in writing by Kevin Evans or any person to whom Kevin Evans delegates such authority in whole or in part provided such delegation is formally notified in writing to the Tenant. Approvals under this Agreement on behalf of the Tenant may be relied upon by the Landlord if given in writing by Justin Smith or any person to whom Justin Smith delegates such authority in whole or in part provided such delegation is formally notified in writing to the Landlord.

9.3.7 The Tenant will permit duly authorised representatives of the Landlord on reasonable prior notice and accompanied by a duly authorised representative of the Landlord, to inspect the Works but not more frequently than once a month.

9.3.8 The Landlord and the Tenant will at all times and in good faith co-operate with one another to facilitate the carrying out of the Works and the Landlord's Key Works including the provision of relevant information and joint approaches to all relevant authorities.

9.3.9 The Landlord shall be under no responsibility to the Tenant or to any person or corporation whatsoever in respect of any loss of life or personal injury or loss of or damage to any property arising out of or in connection with the Works and the Tenant hereby agrees not to make any claim against the Landlord and to make good to the Landlord and to release and indemnify the Landlord from and against all actions claims and demands costs losses charges damages and expenses in relation to or arising either directly or indirectly from the Works or otherwise from the performance by the Tenant of its obligations under this Agreement and in particular against:

(i) any breach by the Tenant of any of its obligations hereunder;

(ii) any injury or death of any person or damage to any property moveable or immovable;

(iii) any damage to interference with or disturbance to the Landlord's adjoining property;

(iv) the carrying out of the Works including but without prejudice to the generality of the foregoing) the negligence of the Tenant or the Professional Team or their respective employees and agents;

and further to maintain a policy of insurance in some insurance office of repute against risks of public liability generally and in particular so as to cover adequately the responsibility release and indemnity herein contained and to ensure that the Landlord's interest is noted on the policy of insurance and upon demand the Tenant shall produce to the Landlord a receipt for the premium payable in respect thereof and evidence of the cover provided always that if the Tenant shall at any time fail to maintain any such insurance as aforesaid the Landlord may from time to time at its discretion effect and keep in force such insurance and thenceforth pay the premium payable from time to time on the policy and the amount of such premium shall be repaid by the Tenant to the Landlord on demand together with interest as mentioned in Clause 6.2.

9.3.10 The Tenant shall observe and perform the covenants conditions restrictions stipulations and other matters to which the Site is or may from time to time be subject and subject to Clause 9.4.1 shall not do or suffer to be done any act or thing which would impede hinder restrict or render inexercisable any rights and easements enjoyed by any person in over or under the Site.

9.3.11 The Tenant shall not at any time deposit or make up or manufacture or allow to be deposited made up or manufactured upon the Site any building or other materials except such as shall be actually required for the Works and as soon as the Works shall be completed the Tenant shall at its own expense remove from the Site and any adjoining road or footpath or from any ground intended to be used for any such road or footpath all buildings and other materials and rubbish and all plant equipment and machinery used in connection with the Works.

9.4 Works to be carried out on the Retained Land

9.4.1 As and when the Tenant submits the drawings and elevations showing the Works pursuant to clause 9.1 it shall also submit to the Landlord for approval (approval not to be unreasonably withheld or delayed) details of the Tenant's proposals for the following works (***Accommodation Works)***

(i) diverting such services serving the Retained Land lying through the Premises at the date of this Agreement as the Tenant wishes to divert

(ii) constructing the new footpath the approximate location of which is shown on the plan annexed at Schedule 3 Part III

(iii) constructing the Drainage Works

(iv) setting out of boundaries of the Site

(v) provision of temporary structures including hoardings and signage

(vi) protection of fauna trees and existing landscaping features to be retained;

9.4.2 In conjunction with, or as soon as practically possible following, approval pursuant to 9.4.1, the Tenant will prepare and submit to the Landlord for approval (approval not to be unreasonably withheld or delayed) a method statement for carrying out the Accommodation Works and to cover practical arrangements for access site safety and timing.

9.4.3 If and when carried out the Tenant will complete the Accommodation Works at the Tenant's own cost in accordance with the method statement and the plans and specifications approved by the Landlord and subject to the Landlord's reasonable requirements regarding the timing of the Accommodation Works.

9.4.4 The Landlord will permit the Tenant access to the Retained Land for the purpose of carrying out the Accommodation Works upon the terms set out in the approved method statement the Tenant causing as little possible disturbance to the Landlord as reasonably possible and making good to the Landlord's reasonable satisfaction all damage caused to the Retained Land.

9.5 Early Access for Drainage Works

9.5.1 Between the Unconditional Date and the Completion Date (or if later the date of completion of the Lease) the Landlord shall allow the Tenant access to the Site and the Retained Land for the purposes only of carrying out the Drainage Works subject to compliance with clause 9.4 and subject to:-

(i) the Landlord's agreement not to be unreasonably withheld to practical arrangements for access, site safety and timing;

(ii) such works not materially interfering with the continuing operation of the Landlord's activities and use of the Site and the Retained Land;

(iii) such access being entirely at the Tenant's risk.

9.5.2 The Drainage Works shall if undertaken by the Tenant pursuant to clause 9.5.1 above, be carried out by the Tenant as soon as practicable after the Unconditional Date and be completed with all proper speed and diligence and the Drainage Works shall be carried out in accordance with and in compliance with clause 9.3 in its entirety.

9.6 **Approval by Landlord not Guarantee**

Neither the approval by or on behalf of the Landlord of any permissions approvals licences or consents (or the applications therefor) which the Tenant is obliged to obtain under this Agreement nor any supervision or certification by the Landlord shall in any way relieve the Tenant the Contractor or any professional advisers or any one or more of them from their respective obligations or duties (whether contractual or otherwise) in respect of the design supervision and/or execution (as the case may be) of the Works or in respect of obtaining all necessary permissions approvals licences and consents for the construction of the Works in accordance with the Approved Plans or from any other obligation or liability which they (or any one or more of them) may have to the Landlord in respect of the Works nor shall it constitute any representation or warranty as to the correctness or suitability of the Works or the accuracy of the design and/or construction.

9.7 **Damage to Premises**

No damage to or destruction of the Premises or any part of them or the means of access to them occurring after the date of this Agreement however occasioned is to affect the obligations of the parties under this Agreement in any way.

10. TERMINATION

10.1 If at any time the Tenant or the Guarantor shall:

(i) be deemed unable to pay its debts as defined in Section 123 of the Insolvency Act 1986 or have a petition presented for its winding-up; or

(ii) enter into liquidation whether compulsory or voluntary (except for the purpose of reconstruction or amalgamation on terms previously approved in writing by the Landlord); or

(iii) have a receiver appointed over all or any of its assets; or

(iv) enter into a composition with its creditors;

then and in any such case the provisions of paragraph 10.2 shall have effect immediately.

10.2 In any of the circumstances specified in Clause 10.1 this Agreement shall without prejudice to any pre-existing right of action of any party in respect of any breach by any other party of its obligations under this Agreement (including where applicable the breach giving rise to the Landlord's right of re-entry) immediately

determine and cease to have effect and the parties shall be released from any further liability under this Agreement.

11. GUARANTEE

11.1 The Guarantor hereby covenants with the Landlord that the Tenant will duly observe and punctually perform all the covenants agreements stipulations and conditions on the Tenant's part contained in this agreement and in any Planning Agreement entered into by the Tenant pursuant to this Agreement and in case of default by the Tenant in any such matters the Guarantor will make good to the Landlord all losses damages costs and expenses thereby arising or incurred by the Landlord and will if so required by the Landlord carry out and observe and perform such covenants stipulations and conditions and as between the Guarantor and the Landlord the liability of the Guarantor shall be as a principal debtor or covenantor **PROVIDED ALWAYS** and it is hereby agreed that any act neglect omission delay or forbearance on the part of the Landlord in enforcing observance or performance by the Tenant as aforesaid or giving of time or other indulgence or concession which may be given to the Tenant by the Landlord (or any other dealing or thing which but for the provision would operate to release or exonerate the Guarantor) shall not release discharge exonerate or in any way affect the liability of the Guarantor hereunder.

11.2 The Landlord and the Guarantor agree that if a liquidator or trustee in bankruptcy shall disclaim or seek to disclaim this Agreement the Guarantor will if the Landlord or the Guarantor shall so require by notice in writing to the other within three months of such disclaimer or attempted disclaimer enter into an agreement with the Landlord in the same form and containing the same terms conditions and provisions as this Agreement with the exception of this Clause and obliging the Guarantor to make good all past breaches hereunder in so far as the same can be capable of being remedied and the said new agreement entered into by the Guarantor subject to such obligation shall take effect from the date of the said disclaimer or attempted disclaimer and in such case the Guarantor shall pay the costs of the preparation and completion of such new agreement and execute and deliver to the Landlord such new agreement and the Landlord shall enter into such a new agreement if required by the Guarantor.

11.3 The Guarantor further covenants with the Landlord that so long as any moneys remain owing by the Guarantor under this Clause the Guarantor shall not:

(a) claim or seek to enforce repayment or subrogation or otherwise of any sums for the time being due to the Guarantor by the Tenant; or

(b) in the event of liquidation of the Tenant prove in competition with the Landlord in respect of any moneys owing to the Guarantor by the Tenant but will give to the Landlord the benefit of any such proof and of all moneys to be received in respect thereof until all moneys owing by the Tenant to the Landlord shall have been paid in full.

11.4 Without prejudice to the rights of the Landlord against the Tenant as principal the Guarantor as a separate and independent stipulation agrees that any liability

mentioned above which may be recoverable on the footing of a guarantee whether by reason of any legal limitation disability or incapacity on or of the Tenant or any other fact or circumstance and whether known to the Landlord or not shall nevertheless be recoverable from the Guarantor as though the same had been incurred by the Guarantor and the Guarantor was the sole or principal covenanter in respect thereof and shall be paid by the Guarantor on demand together with interest (as well before as after any judgment) at the rate of three percentage points per annum above the Prescribed rate (compounded with quarterly rests on each Quarter Day) from the date of demand until payment.

11.4.1 Before requiring compliance by the Guarantor with its obligations under this clause the Landlord will if and as often as it intends to do so give notice to the Tenant and the Guarantor of the Landlord's intention, together with details of the breach by the Tenant or other event giving rise to such claim, and allowing the Tenant a reasonable and proper period of notice within which to remedy such breach or other event and the Landlord will not require such compliance by the Guarantor until such period of notice has expired without the Tenant remedying the breach or other event.

11.4.2 If the Landlord shall make any claim or demand against the Guarantor under or otherwise seek to enforce this clause 11 the Guarantor will if and as often as it is called upon to comply with any such claim or demand forthwith give notice to the Tenant and allow the Tenant a reasonable and proper period in which to comply with its obligations before complying with the Guarantor's obligations under this clause 11 and the Landlord acknowledges that it will not require performance of the Guarantor's obligations under this Agreement until such reasonable and proper period has expired without the Tenant remedying the such breach or other event

11.4.3 If the Tenant has failed to comply with its obligations within such reasonable and proper period the Tenant shall (and the Landlord hereby acknowledges the Tenant's ability to do so) at the Guarantor's written request assign to the Guarantor all rights and interest which it has in this Agreement including the right to have the Lease (in the form referred to in clause 11.5) granted to it without prejudice to any rights and remedies of any part accrued in respect of any pre-existing breaches of this Agreement by any other party and the Tenant (here meaning LTA Ground Limited) shall cease to be the Tenant for the purposes of this Agreement and shall no longer be entitled to be granted the Lease, and any reference in this Agreement to the ***Tenant*** shall thenceforth be deemed to be instead a reference to The All England Lawn Tennis Ground Plc

11.5 Where a lease is granted to The All England Lawn Tennis Ground Plc pursuant to clause 11.4:

11.5.1 It shall be on identical terms to the Lease save that any reference to the Guarantor shall be removed; and

11.5.2 The Guarantor shall pay to the Landlord the whole or any part of the Premium which has not already been paid to the Landlord by the Tenant in accordance with the Tenant's obligations to pay the Premium contained within this Agreement.

12. TITLE AND CONDITION

12.1 Landlord's Title

The Landlord has deduced its title to grant the Lease subject to the entries in the Property and Charges Registers of Title Numbers 139884, 239100 and 396768 as evidenced by office copy entries issued on 2 June 2003. The Tenant shall not raise any objection or requisition in respect of the Landlord's title as deduced, except in relation to any entries made on such titles after the issue of such office copy entries.

12.2 The Subjections

The Premises are to be demised subject to the matters set out or referred to in Schedule 5 and, the Tenant or the Tenant's solicitors having been supplied with such information as the Landlord has concerning such matters, the Tenant has entered into this Agreement with notice of them and may raise no objection, requisition or enquiry in respect of them.

12.3 Notice of State and Condition

The Tenant has entered into this Agreement with notice of the actual state and condition of the Premises and takes the Premises as they are.

13. RESTRICTIONS

13.1 Definition of restrictions

In this clause references to ***restrictions*** are references to all matters affecting the Premises or their use registered or capable of registration as local land charges, and all notices, charges, orders, resolutions, demands, proposals, requirements, restrictions, agreements, directions, or other matters affecting the Premises or their use, served or made by a local or other competent authority, or otherwise arising under a statute or a regulation or order made under a statute.

13.2 Demise subject to restrictions

The Premises are to be demised subject to any restrictions in existence at the date of this Agreement or arising at any later date.

13.3 Warranties excluded

No representation is made or warranty given by the Landlord as to whether or not any restrictions exist, or as to the permitted use of the Premises for planning purposes, or as to whether in other respects the Premises comply with any restrictions.

13.4 Tenant's obligations and indemnity

The Tenant acknowledges that his obligations under this Agreement and the Lease are not to be affected or lessened in any way by the fact that any restrictions may now or subsequently exist, or by any non-compliance with any restrictions and (to the extent that compliance with it would be the Tenant's responsibility under the Lease) the Tenant must indemnify the Landlord against any liability under a requirement of a local or other competent authority relating to the Premises whether made before or after the date of this Agreement.

14. PROCEDURE FOR DISPUTES

Disputes generally

14.1 Any dispute or difference arising between the parties hereto as to their respective rights duties and obligations hereunder or as to any matter arising out of or in connection with the subject matter of this Agreement (other than any such dispute or difference with regard to the meaning or construction of this Agreement) shall be referred to and determined by an independent person who has been professionally qualified for not less than 10 years and who is also a specialist in relation to such subject matter, such independent person to be agreed between the parties hereto or failing such agreement to be nominated as follows on the application of either the Landlord or the Tenant:

(a) on any issue as to the rights and reservations granted and/or referred by or the form of the Lease or the extent of the demise pursuant to the provisions of this Agreement the Chairman for the time being of the Senate of the Inns of Court and the Bar who shall appoint a conveyancing Queen's Counsel;

(b) on any other matter relating to the Development which does not fall to be determined by any other independent person under this Agreement the President for the time being of the Royal Institution of Chartered Surveyors who shall appoint a Chartered Surveyor;

provided that the question of whether a Planning Permission is a Satisfactory Planning Permission shall be determined in accordance with the definition of a Satisfactory Planning Permission and shall not at any time be referred for determination under the provisions of this clause 14.

14.2 Where there is any dispute between the parties as to the classification of any matter in dispute or as to the appointing authority to nominate the independent person the matter shall be referred to the President for the time being of the Law Society who shall act as an expert and whose decision shall be binding on the parties hereto.

Appointment of Arbitrator

14.3 Except as mentioned in the next succeeding sub-clause any person appointed under this Clause shall act as an arbitrator in accordance with the Arbitration Acts 1996.

Appointment of expert

14.4 Whenever a person appointed under this Clause expresses his willingness to act as an expert and not as an arbitrator and the parties agree in writing to such person acting as an expert then:-

(a) such person shall fully consider all written representations made by or on behalf of the Landlord and the Tenant which shall be delivered to him within 28 days of notice of his appointment;

(b) he shall be requested to use all reasonable endeavours to give his decision as speedily as possible;

(c) the decision of such independent person shall be final and binding on the parties hereto in respect of all matters referred to him hereunder;

(d) the fees of such independent person and the costs of his appointment shall be payable by the parties hereto in such proportions as he shall determine or in default of such determination equally between them.

15. MISREPRESENTATIONS

15.1 No authorised representations

Except as provided in clause 15.2 no agent, adviser or other person acting for the Landlord has at any time been authorised by the Landlord to make to the Tenant or to any agent, adviser or other person acting for the Tenant any representation whatever, whether written, oral or implied in relation to the Premises or to any matter contained or referred to in this Agreement.

15.2 Preliminary enquiries

Any written statement made by the Landlord's solicitors to the Tenant's solicitors prior to the making of this Agreement in reply to a written enquiry made by the Tenant's solicitors was made with the authority of the Landlord.

15.3 Immaterial errors

No immaterial error, omission or misstatement in this Agreement or in any plan referred to in this Agreement or in any statement made by any person prior to the making of this Agreement is in any way to affect the obligations of the parties under this Agreement or entitle any party to damages or compensation.

16. ASSIGNMENT OF BENEFIT PROHIBITED

The Tenant may not assign, sublet, charge (except a charge to the Guarantor) or otherwise deal with the benefit of this Agreement in whole or in part, and the Landlord is not to be obliged to grant the Lease to any person other than the Tenant.

17. GRANT OF LEASE TO GROUP COMPANIES

17.1 Subject to The All England Lawn Tennis Ground plc entering into the Lease as guarantor (which The All England Lawn Tennis Ground plc agrees to do) the Tenant may require the Landlord to grant the Lease to a company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant but subject thereto the Landlord shall not be obliged to grant the Lease to any person other than the Tenant.

17.2 If the Guarantor makes a request under clause 11.5 then, subject to The All England Lawn Tennis Ground plc entering into the Lease as guarantor (which The All England Lawn Tennis Ground plc agrees to do) the Guarantor may require the

Landlord to grant the Lease to a company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Guarantor but subject thereto the Landlord shall not (in response to a request under clause 11.5) be obliged to grant the Lease to any person other than the Guarantor.

18. POSSESSION

18.1 Executory agreement

This Agreement is an executory Agreement only, and is not to operate or be deemed to operate as a demise of the Premises.

19. NOTICES

19.1 Form and service

Any notice or other communication given or made in accordance with this Agreement must be in writing and may, in addition to any other effective mode of service, be sent by registered or recorded delivery post to the relevant party either at the address of that party shown on the first page of this Agreement or at any other address he from time to time notifies to the other party as being his address for service for the purposes of this Agreement.

19.2 Service on solicitors

Any notice or other communication given by or to any party in accordance with this Agreement may be given by or to that party's solicitors.

20. COSTS

Except where this Agreement expressly provides otherwise the Landlord and the Tenant are each to bear their own costs in relation to liabilities under this Agreement and without limiting the foregoing the Landlord is to bear all costs in relation to the Landlord's Key Works and the Tenant in relation to the Site.

21. MERGER EXCLUDED

To the extent that they remain to be observed and performed, all the provisions of this Agreement are to continue in full force and effect notwithstanding completion of the Lease.

22. VALUE ADDED TAX AND INTEREST

22.1 Any payment to be made by either party under this Agreement is exclusive of any Value Added Tax applicable thereto which shall be paid in addition at the time of making the payment to which it relates.

22.2 If default shall be made by either party in making any payment under this Agreement as and when it falls due that party shall also pay interest on such payment at the prescribed rate from the date on which it falls due until the date of actual payment (and as well after as before judgement).

22.3 The Landlord agrees with the Tenant and warrants that it has not elected and will not prior to the Termination Date, elect to waive exemption from value added tax in relation to the Premises nor has any company or body within the same VAT group as the Landlord made (nor will they make) any such election.

23. NO PARTNERSHIP

Nothing herein contained shall be deemed to imply a partnership or joint venture between the parties and the Tenant is not and shall not at any time hold itself out to be the agent of the Landlord for any purpose and under no circumstances shall the Tenant have authority to bind the Landlord and similarly the Landlord shall in no circumstances have authority to bind the Tenant.

24. THIRD PARTY RIGHTS

A person who is not a party to this Agreement shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms.

25. SEVERABILITY

If any provision of this Agreement is held to be invalid or unenforceable then such provision shall (so far as invalid or unenforceable) be given no effect and shall be deemed not to be included in this Agreement but without invalidating any of the necessary provisions of the Agreement.

26. AGREEMENT PERSONAL TO LANDLORD

The Landlord may not assign sublet charge or otherwise deal with its interest in this Agreement until 31 December 2005.

27. CONFIDENTIALITY

Neither the Landlord nor the Tenant shall without the prior written consent of the other use include or provide the name of the other on any publicity material relating to the Development or the Landlord's Key Works or the Retained Land including (but not limited to) any signs brochures or advertisements.

28. ENTIRE AGREEMENT

This agreement (including the side letter from the Landlord to the Tenant of even date a copy of which is annexed at Schedule 7) constitutes the entire contract between the parties and may be varied or modified only in writing by the parties or their authorised representatives specifically referring to this clause and stating that this agreement is varied in the manner specified.

IN WITNESS etc

SCHEDULE 1

THE SITE

Part of the Bank of England Sports Ground Roehampton as is more particularly identified edged red on the Plan attached to the Lease

SCHEDULE 2

THE LEASE

DATED **200[ ]**

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND

[Tenant]

THE ALL ENGLAND LAWN TENNIS GROUND PLC

Note: Name of Tenant to be confirmed at time of grant

LEASE
of
National Tennis Centre
The Bank of England Sports Ground
Roehampton

This lease is a new tenancy for the purposes of the Landlord and Tenant (Covenants) Act 1995.

FRESHFIELDS BRUCKHAUS DERINGER

CONTENTS

CLAUSE **PAGE**

1. DEFINITIONS 1
2. INTERPRETATION 3
3. DEMISE AND RENTS 4
4. REDEVELOPMENT 4
5. TENANT'S COVENANTS 4
6. LANDLORD'S COVENANTS 13
7. PROVISOS AGREEMENTS AND DECLARATIONS 13
8. GUARANTEE 15
11. NEW TENANCY 17
12. CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999 17
13. JURISDICTION 17

SCHEDULE 1 (The Premises) 17
SCHEDULE 2 (The Retained Land) 18
SCHEDULE 3 (Easements and Rights Granted) 18
SCHEDULE 4 (Exceptions and Reservations) 19

LEASE made the day of 200_

BETWEEN:

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND of Threadneedle Street London EC2R 8AH (the ***Landlord***);

[Tenant] the registered office of which is at The Queen's Club Palliser Road West Kensington London W14 9EG (Company Registration No [ ]) (the ***Tenant***) and

THE ALL ENGLAND LAWN TENNIS GROUND PLC the registered office of which is Hill House 1 Little New Street London EC4A 3TR (Company Registration Number 168491) (the ***Guarantor***)

WITNESSES as follows

1. DEFINITIONS

In this lease the following expressions have the respective specified meanings (subject to any particular interpretation required by clause 2):

Agreement for Lease means the agreement dated the _____ day of _____ 2003 and made between the Landlord the Tenant and the Guarantor;

Associated Organisations means associations formally associated within the Lawn Tennis Association as notified in writing to the Landlord from time to time;

Buildings means the buildings and facilities from time to time on the Premises;

Enactment means every Act of Parliament directive and regulation now or hereafter to be enacted or made and all subordinate legislation whatsoever deriving validity therefrom;

Independent Surveyor means a building surveyor of not less than ten years standing who is experienced in the construction of property similar to the Premises;

Initial Period means the period of twenty five years from the date of this Lease;

Insured Risks means fire lightning explosion riot civil commotion strikes labour and political disturbances and malicious damage aircraft and aerial devices (other than hostile aircraft and devices) and articles accidentally dropped from them storm tempest flood bursting or overflowing of water tanks and pipes impact earthquake and accidental damage to underground water oil and gas pipes or electricity wires and cables subsidence ground slip and heave and such other risks or perils against the occurrence of which the Tenant may from time to time in its reasonable discretion deem it desirable to insure subject to such exclusions and limitations as are from time to time imposed by the insurers and subject also to the exclusion of such of the risks specifically hereinbefore mentioned as the Tenant may in its reasonable discretion decide where insurance cover in respect of the risk in question is not for the time being available in the London insurance market on reasonable terms;

Office Premises means the office buildings (or any buildings replacing the same from time to time) the location of which is hatched red on Plan 3;

Permitted Use means use of the Premises during the Initial Period for a national tennis centre providing a high class training facility for professional and other tennis players with ancillary offices (including offices for use by the Lawn Tennis Association and Associated Organisations), accommodation, catering, medical, retail and recreational facilities and parking and other uses ancillary thereto and after the expiry of the Initial Period (as to the Office Premises) as offices and (as to the remainder of the Premises) for any sports related purpose or purposes;

Plans 1, 2 and 3 means the plans so numbered annexed hereto;

Planning Acts means the Town and Country Planning Act 1990 the Planning (Listed Buildings and Conservation Areas) Act 1990 the Planning (Hazardous Substances) Act 1990 the Planning (Consequential Provisions) Act 1990 and the Planning and Compensation Act 1991;

Premises means the premises described in Schedule 1;

Premium means the sum of £9,000,000 plus Value Added Tax (if applicable);

Public Authority means any Secretary of State and any government department public local regulatory fire or any other authority or institution having functions which extend to the Premises or their use and occupation and any court of law and the companies or authorities responsible for the supply of water gas and electricity or any of them and any of their duly authorised officers;

Redevelopment means the erection of new buildings or facilities to comprise the Premises;

Regulations means the regulations from time to time made by the Landlord relating to the security and management of the Retained Land and the Premises.

Rent means the rent of a peppercorn if demanded;

Retained Land means the premises described in Schedule 2;

Stipulated Rate means a yearly rate four per cent above the base rate of The Bank of England;

Tenant's Covenants means the covenants and conditions contained or referred to in clause 5;

Term means a term of 125 years commencing on the Term Commencement Date and expiring on [ ];

Term Commencement Date means the date hereof;

VAT means Value Added Tax as referred to in the Value Added Tax Act 1994 (or any tax of a similar nature which may be substituted for or levied in addition to it).

2. INTERPRETATION

2.1 Words importing the singular include the plural and vice versa and words importing one gender include both other genders.

2.2 Where a party comprises more than one person covenants and obligations of that party take effect as joint and several covenants and obligations.

2.3 A covenant by the Tenant not to do (or omit) any act or thing also operates as a covenant not knowingly to permit or suffer it to be done (or omitted).

2.4 References in this lease to:

2.4.1 any clause sub-clause schedule or paragraph is a reference to the relevant clause sub-clause schedule or paragraph of this lease and clause and schedule headings shall not affect the construction of this lease;

2.4.2 any right of (or covenant to permit) the Landlord to enter the Premises shall also be construed (subject always to the proviso to clause 5.8) as entitling the Landlord to remain on the Premises for such time as is reasonable with or without equipment where reasonably necessary and permitting such right to be exercised by all persons authorised in writing by the Landlord (acting reasonably);

2.4.3 any consent licence or approval of the Landlord or words to similar effect mean a consent licence or other approval in writing signed by or on behalf of the Landlord;

2.4.4 the Premises (except in clause 5.13) shall be construed as extending where the context permits to any part of the Premises and the Retained Land to any part of the Retained Land;

2.4.5 a specific Enactment includes every statutory modification consolidation and re-enactment and statutory extension of it for the time being in force except in relation to the Town and Country Planning (Use Classes) Order 1987 which shall be interpreted exclusively by reference to the original provisions of Statutory Instrument 1987 No. 764 whether or not the same may at any time have been revoked or modified;

3. DEMISE AND RENTS

In consideration of the payment to the Landlord by the Tenant of the Premium (receipt of which the Landlord acknowledges) and of the rents hereby reserved and of the covenants on the part of the Tenant and the Guarantor hereinafter contained the Landlord **DEMISES** unto the Tenant **ALL THAT** the Premises **TOGETHER WITH** the easements and rights specified in Schedule 3 exercisable in common with the Landlord and all others with its authority or otherwise entitled thereto **EXCEPT AND RESERVED** to the Landlord and all other persons authorised by it from time to time during the Term or otherwise from time to time entitled thereto the easements and rights specified in Schedule 4;

TO HOLD the Premises unto the Tenant for the Term **SUBJECT** to all rights easements covenants stipulations and other matters affecting the same including the rights easements covenants stipulations and other matters contained or referred to in the documents referred to in the registers of Title Nos. 139884, 239100 and 396768.

YIELDING AND PAYING therefore yearly during the Term the Rent if demanded;

4. REDEVELOPMENT

Subject to the Landlord's prior written consent (which shall not be unreasonably withheld or delayed after the end of the Initial Period) the Tenant may carry out a Redevelopment on not more than three occasions during the Term and if any dispute arises as to whether or not works proposed (whether or not together with other works) amount to a Redevelopment the Landlord shall not be obliged to approve such works until such dispute has been finally resolved and (subject to the foregoing requirements of this clause) during the Initial Period the Tenant will not be permitted to increase the height and width of those buildings (*the **Existing Structures***) erected on the Premises pursuant to the Agreement for Lease nor replace the Existing Structures with new buildings and structures which are higher or wider than the Existing Structures.

5. TENANT'S COVENANTS

The Tenant covenants with the Landlord:

5.1 Rent

To pay the Rent reserved by this lease if demanded.

5.2 VAT

Wherever the Tenant is required to pay any amount to the Landlord hereunder by way of reimbursement or indemnity to pay to the Landlord in addition an amount equivalent to any VAT incurred by the Landlord save to the extent that the Landlord obtains credit for such VAT incurred by the Landlord whether pursuant to sections 24 25 and 26 Value Added Tax Act 1994 or any regulations made thereunder or otherwise.

5.3 Outgoings

5.3.1 To pay and indemnify the Landlord against all rates taxes charges and other outgoings whatsoever now or hereafter assessed charged or imposed upon the Premises or upon their owner or occupier excluding (without prejudice to clause 5.2) any tax payable by the Landlord as a direct result of any actual or deemed dealing with the reversion to this lease or of the Landlord's receipt of income from the Premises.

5.3.2 To pay to the Landlord on demand a fair and proper proportion (to be determined by the Landlord) of any costs of maintenance repair and renewal of any pipe wire cable or other conduit or any other structure or thing which is situated off the Premises but which serves the Premises in common with the Retained Land which is owned by the Landlord from time to time or for which the Landlord is liable.

5.4 **Compliance with Enactments**

To comply with the lawful requirements of all Enactments and of every Public Authority (including the due and proper execution of any works) in respect of the Premises and their use and occupation and any work being carried out to them (whether the requirements are imposed upon the owner lessee or occupier) and not knowingly to do or omit anything by which the Landlord may become liable to make any payment or do anything under any Enactment or requirement of a Public Authority.

5.5 **Notices**

As soon as reasonably practicable after receipt of the same to give to the Landlord a copy of any notice permission direction requisition order or proposal made by any Public Authority in respect of the Premises and without delay (subject to any right of appeal to which the Tenant is entitled) to comply in all respects at the Tenant's cost with the provisions thereof.

5.6 **Repair**

Well and substantially to repair the Buildings and other structures erected on the Premises and maintain and keep them in good and substantial repair and condition.

5.7 **Decoration and general condition**

To keep the Buildings and other structures erected on the Premises maintained to a proper standard of decorative order and finish and properly cleansed and tidy and all glass properly clean at all times and to keep all landscaped or garden areas neat and tidy and properly cultivated.

5.8 **To permit entry**

To permit the Landlord at reasonable times on at least 7 days prior written notice (except in an emergency) to enter the Premises in order to:

5.8.1

5.3.1 To pay and indemnify the Landlord against all rates taxes charges and other outgoings whatsoever now or hereafter assessed charged or imposed upon the Premises or upon their owner or occupier excluding (without prejudice to clause 5.2) any tax payable by the Landlord as a direct result of any actual or deemed dealing with the reversion to this lease or of the Landlord's receipt of income from the Premises.

5.3.2 To pay to the Landlord on demand a fair and proper proportion (to be determined by the Landlord) of any costs of maintenance repair and renewal of any pipe wire cable or other conduit or any other structure or thing which is situated off the Premises but which serves the Premises in common with the Retained Land which is owned by the Landlord from time to time or for which the Landlord is liable.

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To keep the Buildings and other structures erected on the Premises maintained to a proper standard of decorative order and finish and properly cleansed and tidy and all glass properly clean at all times and to keep all landscaped or garden areas neat and tidy and properly cultivated.

5.8 **To permit entry**

To permit the Landlord at reasonable times on at least 7 days prior written notice (except in an emergency) to enter the Premises in order to:

5.8.1 examine their state of repair;

5.8.2 ascertain that the covenants and conditions of this lease have been observed;

5.8.3 carry out any works of necessary repair to the Retained Land belonging to the Landlord from time to time in circumstances only where it is not reasonably practicable to do so by a means which would not involve effecting such entry;

5.8.4 for any other purpose connected with the reversionary interest of the Landlord in the Premises

PROVIDED ALWAYS THAT the Landlord shall not exercise any right to enter the Premises for the purposes described in this clause 5.8 except in the company of a representative of the Tenant or so as to unreasonably interfere with the use of the Premises for the purpose of the business carried on by the Tenant or any undertenant or other occupier thereof and the Landlord shall cause as little inconvenience or disturbance as reasonably practicable and shall promptly at its own cost make good all damage to the Premises and any contents thereof caused by such entry.

5.9 **Compliance with notices relating to repair or condition**

5.9.1 To comply within a reasonable time with any written notice requiring the Tenant to remedy any breach of its covenants contained in this Lease.

5.9.2 If the Tenant shall not within a reasonable time comply with any such written notice to permit the Landlord and any person authorised by the Landlord to enter the Premises to remedy the breach at the Tenant's cost.

5.9.3 To pay to the Landlord within 14 days of demand all the costs and expenses properly incurred by the Landlord under the provisions of this sub-clause.

5.10 **Encroachments**

5.10.1 To use all reasonable endeavours to preserve all rights of light and other easements belonging to the Premises and not to give any acknowledgement that they are enjoyed by consent.

5.10.2 Not to knowingly do or omit anything which might subject the Premises to the creation of any new easement and to give notice to the Landlord as soon as reasonably practicable after becoming aware of any encroachment which might have that effect and at the cost of the Tenant to do such things as may be necessary for preventing any such new encroachment or easement being made or acquired and if the Tenant shall fail to do all such things as aforesaid the Landlord or its agents and workmen may enter the Premises to do the same and the proper costs and expenses so incurred shall be repaid by the Tenant to the Landlord within fourteen days of demand and if not so paid shall be recoverable by the Landlord from the Tenant as liquidated damages or as rent in arrear.

5.11 **Alterations**

5.11.1 Not within the Initial Period to demolish the Buildings nor to erect any new building or buildings.

5.11.2 Not within the Initial Period to alter materially the external appearance of the Buildings or to unite or annex or suffer to be united or annexed the Premises to any adjoining or neighbouring property and not to extend or increase the height or projection of the Buildings.

5.11.3 Without prejudice to clauses 5.11.1 and 5.11.2, not without the consent of the Landlord (which shall not be unreasonably withheld or delayed) but subject to compliance with the other provisions of this Clause 5.11 to make or permit or suffer to be made any external additions or external structural alterations to the Premises.

5.11.4 In the case of all alterations to the Premises (other than in the case of Redevelopment):

(a) the Tenant shall with the Tenant's application to the Landlord for consent provide the Landlord with full details of all works to be carried out including plans and specifications and copies of all consents (other than the Landlord's consent) required for such works;

(b) Landlord's consent may be given subject to such reasonable conditions as the Landlord shall require;

(c) during the Initial Period such works shall be carried out within the existing shell of the Building;

(d) when making any application for Landlord's consent for any works under this clause 5.11 the Tenant shall with such application advise the Landlord in writing by reference to Clause 4 whether or not in the Tenant's opinion such works taken alone or together with other works amount to (or might amount to if commenced within a given period) a Redevelopment and in the event of disagreement between the parties hereto as to whether or not works carried out or proposed by the Tenant taken alone or together with other works amount to a Redevelopment such dispute shall be referred to determination by an Independent Surveyor experienced in the construction and refurbishment of buildings of a similar size and nature to the Buildings appointed by agreement between the Landlord and the Tenant or failing agreement on the application of either party by the President of the Royal Institution of Chartered Surveyors and who shall act as an expert and whose decision as to whether or not the works amount to a Redevelopment shall (save in the case of manifest error) be final and binding on the parties hereto.

5.11.5 To enter into such covenants as the Landlord may reasonably require regarding the execution of any works to which the Landlord consents under this Clause and the reinstatement of the Premises at the end or earlier termination of the Term.

5.11.6 Within a reasonable time (being not more than 2 months) following the completion of any such alterations as may be permitted by the Landlord pursuant to the provisions of this Clause to submit to the Landlord as-built plans and specifications thereof.

5.12 **Use**

Not to use the Premises:

5.12.1 for any purpose (and not to do anything in or to the Premises) which may be or become or cause an actionable nuisance obstruction or damage to any person or property;

5.12.2 for any dangerous noxious illegal or immoral trade business or activity; or

5.12.3 for residential purposes (except in relation to the use of the accommodation by players and coaches in conjunction with the training facilities); or

(without prejudice to the preceding paragraphs of this sub-clause) except for the Permitted Use.

5.13 **Alienation**

5.13.1 Not to charge part only of the Premises.

5.13.2 Not to assign the Premises or this Lease in any part less than the whole.

5.13.3 Not to assign the whole of the Premises:

(a) (if the Landlord shall reasonably so require) without obtaining from a guarantor or guarantors reasonably acceptable to the Landlord a full guarantee of the covenants of the proposed assignee by deed in such form as shall be reasonably required by the Landlord; nor

(b) if in the reasonable opinion of the Landlord the proposed assignee (taking into account any covenant to be given by a guarantor or guarantors for such assignee) is not of sufficient financial standing to enable it to pay the rents reserved from time to time by this Lease and otherwise perform the covenants on the part of the Tenant contained in this Lease.

5.13.4 Not to assign or transfer the whole of the Premises otherwise than in accordance with nor without in each and every such case first complying with the foregoing provisions and subject to having complied with them and subject to paragraph 5.13.5 of this Lease not without obtaining the prior written consent of the Landlord which consent shall not be unreasonably withheld

5.13.5 The Landlord and the Tenant agree that for the purposes of section 19(1A) of the Landlord and Tenant Act 1927 the Landlord may give its consent to an assignment subject to conditions that:

(a) the Tenant by deed enters into an Authorised Guarantee Agreement;

(b) any guarantor whose guarantee is subsisting immediately before the assignment enters into a guarantee with the Landlord in such form as the Landlord may reasonably require of the Tenant's obligations under the Authorised Guarantee Agreement;

(c) the assignment shall not take place until any requisite consent of any superior landlord or mortgagee has been obtained and any lawfully imposed conditions of such consent satisfied;

(d) the Tenant obtains from the assignee a covenant by deed with the Landlord to pay the Rent and to observe and perform all the covenants on the part of the Tenant and the conditions contained in this Lease from the date of the deed of transfer or deed of assignment of the Premises until such time as the assignee shall be released pursuant to the Landlord and Tenant (Covenants) Act 1995;

5.13.6 Not to underlet the whole or any part or parts of the Premises except with the prior written consent of the Landlord such consent not to be unreasonably withheld or delayed.

5.13.7 Not share occupation of the Premises or any part thereof other than in a manner permitted by Paragraph 5.13.8 below or with Associated Organisations.

5.13.8 Subject to the Tenant giving not less than 14 days' prior written notice to the Landlord of the identity of the company and of the part of the Premises affected (if less than the whole) the Tenant and any permitted undertenant may share occupation of the Premises or the relevant part thereof with a company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant or permitted undertenant:

(a) for so long only as such company shall remain within such group

(b) on terms whereby such company is not given exclusive occupation of the Premises or any part thereof and no relationship of landlord and tenant is created and

(c) provided that any rent or other payment received by the Landlord from any such company shall be deemed to have been paid by such company as agent for the Tenant.

5.13.9 Upon every application for consent required by this **paragraph 5.13** to disclose to the Landlord such information including as to the terms proposed as the Landlord may reasonably require.

5.14 **Registration**

Within five working days after any transfer, underletting or other disposition or devolution of this lease or the commencement or termination of any sharing of the Premises or part thereof to give notice to the Landlord and to pay to the Landlord a fair and reasonable fee for each such registration.

5.15 **Tenancy Information**

During intervals not more frequently than annually to provide the Landlord on demand a schedule of every tenancy or other occupation of the Premises to include the name of the tenant or occupier and such other information as the Landlord shall reasonably require.

5.16 **Payment of cost of notices consents etc.**

To pay on demand all proper expenses (including counsels' solicitors' surveyors' and bailiffs' fees) incurred by the Landlord in and incidental to:

5.16.1 the preparation and service of a notice under section 146 Law of Property Act 1925 or in any proceedings under section 146 or 147 of that Act notwithstanding that forfeiture is avoided otherwise than by relief granted by the court; and

5.16.2 every step taken during or after the expiry of the Term in connection with the service or proposed service of schedules of dilapidations within three months of the expiration of the Term and relating only to dilapidations accruing during the Term;

5.16.3 every application for consent licence or approval under this lease even if the application is withdrawn or properly refused.

5.17 **Planning Acts and compensation**

5.17.1 Without prejudice to clause 5.4 to comply with the provisions and requirements of the Planning Acts relating to or affecting:

(A) the Premises;

(B) any operations works acts or things carried out executed done or omitted on the Premises;

(C) the use of the Premises.

5.17.2 As often as occasion requires during the Term at the Tenant's expense to obtain and if appropriate renew all planning permissions (and serve all notices) required under the Planning Acts in respect of the Premises whether for the carrying out by the Tenant of any operations or the institution or continuance by the Tenant of any use of the Premises or any part thereof or otherwise.

5.17.3 Unless the Landlord otherwise directs to complete before the expiry of the Term all works on the Premises required as a condition of any planning permission implemented by the Tenant.

5.17.4 If the Tenant receives or is entitled to receive any statutory compensation under any Enactment in relation to its interest in the Premises the Tenant shall on any determination of its interest prior to the expiry of this lease by effluxion of time forthwith make such provision as is just and equitable for the Landlord to receive its due benefit from such compensation.